

**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION REGULATION
SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract
Orders under Fair Opportunity
Federal Acquisition Regulation (FAR) 16.505, Defense FAR Supplement 216.505-70,
Procedures, Guidance, and Information 216.505-70

Military Interdepartmental Purchase Request Number: HC1085448813
Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005
Task Order Number: HC105024F0025
Procurement Title: Command & Control Software Factory (C2SF)
Estimated Value: [REDACTED]
Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 2304c(b) and FAR
16.505(b)(2)(i)(C)

EXCEPTION TO FAIR OPPORTUNITY

Number: JA24-086 **MOD 01**

Upon the basis of the following justification, I, as the Procuring Activity Competition Advocate (PACA), hereby approve this exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 2304c(b) and Regulatory Authority of FAR 16.505(b)(2)(i)(B)).

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:
Defense Information Systems Agency (DISA)/DCSC JOINT ENTERPRISE SERVICES
(SD)
6914 Cooper Ave
Fort Meade, MD 20755

Contracting Activity:
DISA/Defense Information Technology Contracting Organization/PS8511
2300 East Drive
Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S):

MOD 01: This modification is to increase the value by [REDACTED] in support of two changes. The first increase is to add 25% surge for the lifecycle which is necessary to support the Government's current need. The second part of the increase is to support higher than expected growth of CLINs 0001, 0002, 0003, and 0004. The increase to the CLINs is required as C2SF's onboarding and usage has increased drastically despite the anticipated growth percentages included in the Internal Government Cost Estimate/Description of Work. For each of the systems being supported, especially with a consistent increase of the

Controlled By: DISA
Controlled By: PSD/PS8511
CUI Category: PROCURE
Distribution/Dissemination Control: FEDCON
POC: Tyler Kehrer, JWCC Mailbox: disa.scott.ditco.mbx.ditco-jwcc@mail.mil

usage in Elastic Compute Cloud (EC2) and Relational Database Service has resulted in an average estimate of increase of approximately [REDACTED] per cycle. Based on current usage, the addition of 25% surge has been included to cover potential growth of existing CLINs throughout the remaining lifecycle.

This action is to issue a firm-fixed-price task order (TO) against the JWCC Indefinite Delivery/Indefinite Quantity Contract for C2SF. This TO will be issued directly to Amazon Web Services (AWS). The anticipated period of performance (PoP) is for a 1-year base period, plus one 1-year option period. The total estimated value is [REDACTED]. **MOD 01 increases the total estimated value by [REDACTED] for a new total of [REDACTED],** which will be funded by Operations & Maintenance funds.

3. DESCRIPTION OF SUPPLIES/SERVICES:

This requirement is for cloud services in Integration Layer (IL) 5 and IL6 for C2SF, a cloud-based admin-tenant DevSecOps integration platform hosted in accredited IL5 & IL6 environments. Its core capability is a centrally hosted toolchain of software used for the execution and auditing/testing of contracted products.

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

FAR 16.505(b)(2)(i)(B) - Only one awardee can provide the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

(b) Description of the Justification.

The sole source justification for exclusively utilizing AWS cloud stems from the organization's established infrastructure and operational reliance on AWS services. Transitioning to a different cloud service provider (CSP) would disrupt current workflows, integrations, and systems built around AWS architecture, potentially leading to an operational stop in our development, installation, and the workflow entirely. The existing infrastructure leverage key AWS capabilities, such as Relational Database Service (RDS), transit gateway networking to easily separate, manage and operate factory and tenant workloads drive the current need for compatibility. Seamless continuity is required. Any deviation from this established platform would not only incur significant migration costs and resource reallocation, but also may impact C2SF operations as well as impacting mission partner's ability to build their software systems using C2SF thus interrupting both their operation missions as well as C2SF's, ultimately jeopardizing the seamless continuity of our operations.

(c) Justification.

(1) Minimum Government requirements.

All the cloud service offerings from IL5 and IL6 are expected and some of the common services are listed below:

- Virtual Machines with autoscaling attached block storage and snapshotting capabilities.
- Savings Plan for Compute Usage
- RDS, OpenSearch Service, Virtual Private Clouds, Elastic Load, Transit Gateway, Balancing, Simple Storage Service (S3), Virtual Network Peering, Elastic Kubernetes Service, Key Management Service, Elastic Container Registry, Route 53, Log Monitoring

(2) Proposed sole source contractor: AWS.

(3) Discussion regarding the cause of the sole source situation.

C2SF is looking for a broad set of global cloud-based products that include compute, storage, networking, developer tools, management tools, security, databases, and fast availability. Government also requires C2SF to operate in both IL5 and IL6 environments, and thus needs a CSP that offers a Cross-Domain Solution.

(4) Demonstration of unique source.

The CSP being sought has a unique and efficient way of handling long-term storage. It uses block level storage for persistent data storage for use with EC2 instances. Through the use of EC2, the CSP is able to provide security at the protocol and port access level using a set of rules that are comprised by four fields:

- Type
- Protocol
- Port Range
- Source

The Authority to Operate (ATO) for C2SF is based on running the factory in the IL5 and IL6 environments. DISA SD will need to complete the entire ATO process again if the underlying infrastructure utilizes a different CSP since AWS is currently the only CSP with an ATO. C2SF already handles thousands of users, and with the lengthy ATO process, all those users would be experiencing unnecessary downtime to the service.

(5) Procurement discussion.

This procurement has a need-by-date of August 1st, 2024, since the previous contract is getting ready to expire (see procurement history below in section 8a).

C2SF is currently operating at IL5 and IL6. It is integrated with DISA Virtual Data Center Security Stack Service which allows access traffic routing, which drives the current need for compatibility with the existing infrastructure that is only supported by AWS. C2SF is an operational mission support system. Any migration to JWCC would

need to be done without any service disruption or downtime to the system so that there is no interruption of the workflow between Government and tenants.

(6) Impact.

The ATO is predicated upon C2SF running in IL5 and IL6 environments and any change to the underlying CSP will void the ATO. Since there is already an existing environment, the CSP is immediately able to shift to supporting the resultant award associated with this contract action. In addition, another CSP would not be positioned to leverage investments made to date to most efficiently meet the objectives of the task order for the anticipated PoP.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION:

A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the independent government cost estimate and the JWCC Catalog pricing, including any discounts, which was previously found to be fair and reasonable and based on the contractor's commercial pricing.

6. MARKET RESEARCH:

Market research for the basic JWCC Contracts was conducted and resulted in a signed market research report on November 9, 2021. After a survey of the market, it was concluded that the JWCC Contract is in the Government's best interest due to technical feasibility and cost to the Government.

Additional research was conducted on March 8, 2024, by reviewing the specific capabilities in the JWCC Contracts and it was determined that AWS is the only source that supports all of the Government's minimum needs (see 4.c.1) in the manner and time frame required.

AWS utilizes an Elastic Cloud Container Service, which are one of the main Government minimal needs. This containerized service supports Docker files through a command-line interface, which are the files that are utilized by the C2SF developers. Azure is not efficient like this as their containerization support requires someone to run each container, one at a time, inside of a web app, which slows down production overall. While Google Cloud utilizes Kubernetes, it has recently removed support for Docker, which would interrupt all production as C2SF would have to do a complete service overhaul.

AWS is unique in its S3 that Google Cloud and Azure do not offer. Benefits of managing object storage through S3 include the ability to maintain security through buckets which make objects private and accessible only to the developers, durability with multiple availability zones ready, scalability to allow for storage size increases, consistent backups the provide longevity of data, and many options available for cloud data migration, whether it be small or large amounts of data to and from S3.

The biggest reason Government desires to utilize AWS is because Amazon offers majority of the minimal government needs as their own service integrated within AWS. Route 53, RDS and Transit Gateway are just a few of the needs that Amazon maintains that other CSPs do not.

7. ANY OTHER SUPPORTING FACTS: None.

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

(a) Procurement History:

Contract Number: HC104719C0005

Task Order Number: Not applicable

Period of Performance: August 01, 2019 - July 31, 2024

Competitive Status: Small business (SB) set-aside

Business Size: HUBZone

(b) To overcome future barriers to competition, future development and enhancement of IaaS components will include shifting to a containerized platform. Benefits of shifting to a containerized platform include wider agility and productivity, high availability, scalability and infrastructure optimization, operational consistency (reduced range of skillset required to operate environments), and component portability. This will enable multiple vendors to meet the requirements which will enable the flexibility to shift workload based on financial and mission requirements.

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED]

SIGNATURE: [REDACTED]

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: [REDACTED]

SIGNATURE: [REDACTED]

TITLE/ORGANIZATION: [REDACTED]

PHONE: [REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Lara Chiaurro

SIGNATURE: [REDACTED]

TITLE/ORGANIZATION: Contracting Officer /
DISA/DITCO/PS8511

PHONE: [REDACTED]

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO:

[REDACTED]